**BRENDAN NGWA NFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

| | |
|---|---|
| **BRENDAN NGWA NFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**SANTIAGO MEZA-GONZALEZ; JOSE MELANO; and DOES 1-10,**<br><br>Defendants. | Case No. 3:26-cv-08271-PHK<br><br>**NOTICE IDENTIFYING OPERATIVE FIRST AMENDED COMPLAINT**<br><br>[Fed. R. Civ. P. 15]<br><br>Hon. Peter H. Kang |

# NOTICE IDENTIFYING OPERATIVE FIRST AMENDED COMPLAINT

TO THE COURT AND ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Plaintiff Brendan Ngwa Nforbi, appearing in propria persona, submits this Notice solely to clarify the record concerning two clerk-stamped First Amended Complaints now appearing on the docket of this action.

1. On August 14, 2026, the Clerk filed a First Amended Complaint as Dkt. 6 (21 pages; caption-dated August 12, 2026).

2. On August 17, 2026, the Clerk filed a First Amended Complaint as Dkt. 5 (21 pages; caption-dated August 17, 2026). The Melano proof of service of summons was filed the same day

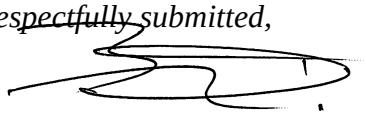
as Dkt. 5-1.

3. For the avoidance of doubt, and notwithstanding that Dkt. 5 bears a lower docket number than Dkt. 6, the operative pleading of record is the First Amended Complaint filed August 17, 2026 as Dkt. 5. The earlier First Amended Complaint filed August 14, 2026 as Dkt. 6 is superseded in full and is of no further force or effect. See Fed. R. Civ. P. 15(a); Lacey v. Maricopa County, 693 F.3d 896, 927 (9th Cir. 2012) (en banc).

4. This Notice does not amend, supplement, or withdraw any allegation in Dkt. 5. It is filed only to identify the operative pleading clearly on the face of the docket before any responsive pleading or Rule 12 motion.

Dated: August 23, 2026

*Respectfully submitted,*



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**BRENDAN NGWA NFORBI**

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI
Plaintiff

Case Number: 3:26-cv-08271-PHK

V.

SANTIAGO MEZA-GONZALEZ;
JOSE MELANO; and DOES 1-10
Defendants

**PROOF OF SERVICE**

/

I hereby certify that on August 23, 2026, I served a copy of the attached

Notice Identifying Operative First Amended Complaint,

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California:

**(List Name and Address of Each Defendant or Attorney Served)**

Officer Jose Melano (CHP Badge #023054)
California Highway Patrol, South Sacramento Area
6 Massie Court
Sacramento, CA 95823

(No Rule 5 mailing to Defendant Santiago Meza-Gonzalez --
process under Fed. R. Civ. P. 4 has not been completed.)

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngwa Nforbi, In Propria Persona